

HOUSE No. 2077

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring certain employers to establish and maintain a human resources department.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joanie Lawlor</i>		<i>1/17/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/29/2025</i>

HOUSE No. 2077

By Representative Chan of Quincy (by request), a petition (accompanied by bill, House, No. 2077) of Joanie Lawlor for legislation to require certain employers to establish and maintain a human resources department. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring certain employers to establish and maintain a human resources department.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 149 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding after section 203 the following new section:-

3 Section 204. (a) As used in this section, the following words shall, unless the context
4 otherwise requires, have the following meanings:

5 “Compliance,” employer’s compliance with all applicable federal, state, and local labor
6 laws, including but not limited to the Fair Labor Standards Act, the Massachusetts Equal Pay
7 Act, and the Massachusetts Family and Medical Leave Act.

8 “Employee relations,” employer’s efforts to maintain employee morale, engagement, and
9 job satisfaction; foster positive workplace culture and productivity; effectively manage conflict
10 and address employee concerns; and ensure fair treatment of employees by maintaining open and
11 clear communication between said employer and their employees.

(b) Any employer operating within the Commonwealth with twenty-five or more employees shall maintain a full-time human resources department; any employer with fewer than twenty-five employees shall maintain a part-time human resources department. A human resources department shall be staffed with at least one individual.

(c) The human resources department's responsibilities shall include, but not be limited to: employee relations; benefits administration; recruitment and hiring; training and development; compliance; and recordkeeping.

(d) Any employer in violation of this section shall be subject to complaint to and action by the Fair Labor Division of the Massachusetts Attorney General's Office.

SECTION 2. This act shall take effect on January 1, 2026.